

## **US Cosmetics Regulation FD&C + MoCRA (MoCRA 2)**

### **MoCRA Good Manufacturing Practice (GMP)**

**Title:** Good Manufacturing Practice Requirements for Cosmetic Facilities

**Jurisdiction:** International

**Category:** Standards

**Source Citation:** Modernization of Cosmetics Regulation Act of 2022 (MoCRA), §606; Federal Food, Drug, and Cosmetic Act (FD&C Act), §606; 21 U.S.C. §364b

#### **Plain English Summary:**

MoCRA requires FDA to establish Good Manufacturing Practice (GMP) requirements for facilities that manufacture or process cosmetic products. The GMP rules are intended to protect public health and ensure that cosmetics are not adulterated, and they must take into account the size and scope of the business and the risks posed by the cosmetics.

For an Ayurvedic cosmetics startup, this means manufacturing and processing operations need to be conducted under appropriate controls for sanitation, facilities, equipment, production, storage, and quality, once the applicable GMP requirements are established. FDA also states that its existing cosmetic GMP guidance/checklist can be used as a practical reference while the MoCRA GMP rulemaking is implemented.

#### **The Exact Legal Text:**

##### **21 U.S.C. §364b(a) In general**

The Secretary shall by regulation establish good manufacturing practices for facilities that are consistent, to the extent practicable, and appropriate, with national and international standards, in accordance with section 361 of this title. Any such regulations shall be intended to protect the public health and ensure that cosmetic products are not adulterated. Such regulations may allow for the Secretary to inspect records necessary to demonstrate compliance with good manufacturing practices prescribed by the Secretary under this paragraph during an inspection conducted under section 374 of this title.

##### **21 U.S.C. §364b(b) Considerations**

In establishing regulations for good manufacturing practices under this section, the Secretary shall take into account the size and scope of the businesses engaged in the manufacture of cosmetics, and the risks to public health posed by such cosmetics, and provide sufficient flexibility to be practicable for all sizes and types of facilities to which such regulations will apply.

Such regulations shall include simplified good manufacturing practice requirements for smaller businesses, as appropriate, to ensure that such regulations do not impose undue economic hardship for smaller businesses, and may include longer compliance times for smaller businesses.

Before issuing regulations to implement subsection (a), the Secretary shall consult with cosmetics manufacturers, including smaller businesses, consumer organizations, and other experts selected by the Secretary.

## **21 U.S.C. §364b(c) Timeframe**

The Secretary shall publish a notice of proposed rulemaking not later than 2 years after December 29, 2022, and shall publish a final such rule not later than 3 years after December 29, 2022.

### **Keywords/Triggers:**

cosmetic GMP USA, MoCRA GMP, Ayurvedic cosmetic manufacturing, cosmetic manufacturing standards, cosmetic facility hygiene, cosmetic quality control, FDA GMP cosmetics, 21 USC 364b

## **MoCRA Cosmetic Product Labeling**

**Title:** Cosmetic Product Labeling Requirements

**Jurisdiction:** International

**Category:** Advertising

**Source Citation:** Modernization of Cosmetics Regulation Act of 2022 (MoCRA), §609; Federal Food, Drug, and Cosmetic Act (FD&C Act), §609; 21 U.S.C. §364e

### **Plain English Summary:**

MoCRA adds specific federal labeling requirements for cosmetics. A cosmetic product must provide a domestic address, domestic telephone number, or electronic contact information through which the responsible person can receive adverse-event reports. MoCRA also establishes requirements for fragrance-allergen disclosure and for products intended exclusively for professional use.

For an Ayurvedic cosmetics startup selling products in the U.S., the label therefore needs to identify an appropriate way for consumers to report adverse events, and products containing fragrance allergens will be subject to the applicable FDA disclosure requirements once the relevant allergen regulations are established. Existing FD&C Act labeling requirements also continue to apply; FDA notes that cosmetic labeling requirements are additionally codified in 21 CFR Parts 701 and 740.

**The Exact Legal Text:****21 U.S.C. §364e(a) General requirement**

Each cosmetic product shall bear a label that includes a domestic address, domestic phone number, or electronic contact information, which may include a website, through which the responsible person can receive adverse event reports with respect to such cosmetic product.

**21 U.S.C. §364e(b) Fragrance allergens**

The responsible person shall identify on the label of a cosmetic product each fragrance allergen included in such cosmetic product. Substances that are fragrance allergens for purposes of this subsection shall be determined by the Secretary by regulation.

The Secretary shall issue a notice of proposed rulemaking promulgating the regulation implementing this requirement not later than 18 months after December 29, 2022, and not later than 180 days after the date on which the public comment period on the proposed rulemaking closes, shall issue a final rulemaking.

In promulgating regulations implementing this subsection, the Secretary shall consider international, State, and local requirements for allergen disclosure, including the substance and format of requirements in the European Union, and may establish threshold levels of amounts of substances subject to disclosure pursuant to such regulations.

**21 U.S.C. §364e(c)(1) Definition of professional**

For purposes of this subsection, the term ‘professional’ means an individual who is licensed by an official State authority to practice in the field of cosmetology, nail care, barbering, or esthetics.

**21 U.S.C. §364e(c)(2) Professional-use labeling**

A cosmetic product introduced into interstate commerce and intended to be used only by a professional shall bear a label that

**(A)** contains a clear and prominent statement that the product shall be administered or used only by licensed professionals; and

**(B)** is in conformity with the requirements of the Secretary for cosmetics labeling under this chapter and section 1453(a) of title 15.

**Keywords/Triggers:**

MoCRA labeling, cosmetic labeling USA, Ayurvedic cosmetic label, fragrance allergens, cosmetic allergen disclosure, professional-use cosmetics, adverse event contact information, 21 USC 364e

## **MoCRA FDA Access to Cosmetic Records**

**Title:** FDA Access to Cosmetic Product Records

**Jurisdiction:** International

**Category:** Standards

**Source Citation:** Modernization of Cosmetics Regulation Act of 2022 (MoCRA), §610; Federal Food, Drug, and Cosmetic Act (FD&C Act), §610; 21 U.S.C. §364f

### **Plain English Summary:**

MoCRA gives FDA authority to access and copy certain records relating to a cosmetic when FDA reasonably believes that the cosmetic, or an ingredient in it, may be adulterated and that its use or exposure could cause serious adverse health consequences or death. The responsible person and facility must provide the relevant records when properly requested by an authorized FDA officer or employee.

For an Ayurvedic cosmetics startup, this means important safety substantiation and product-related records should be properly maintained and retrievable. However, §364f specifically excludes certain categories such as cosmetic formulas/recipes, financial and pricing data, most personnel data, certain research data, and most sales data from this particular records-access authority.

### **The Exact Legal Text:**

#### **21 U.S.C. §364f(a) In general**

If the Secretary has a reasonable belief that a cosmetic product, including an ingredient in such cosmetic product, and any other cosmetic product that the Secretary reasonably believes is likely to be affected in a similar manner, is likely to be adulterated such that the use or exposure to such product presents a threat of serious adverse health consequences or death to humans, each responsible person and facility shall, at the request of an officer or employee duly designated by the Secretary, permit such officer or employee, upon presentation of appropriate credentials and a written notice to such person, at reasonable times and within reasonable limits and in a reasonable manner, to have access to and copy all records relating to such cosmetic product, and to any other cosmetic product that the Secretary reasonably believes is likely to be affected in a similar manner, that are needed to assist the Secretary in determining whether the cosmetic product is

adulterated and presents a threat of serious adverse health consequences or death to humans.

This subsection shall not be construed to extend to recipes or formulas for cosmetics, financial data, pricing data, personnel data (other than data as to qualification of technical and professional personnel performing functions subject to this chapter), research data (other than safety substantiation data for cosmetic products and their ingredients), or sales data (other than shipment data regarding sales).

## **21 U.S.C. §364f(b) Rule of construction**

Nothing in this section shall be construed to limit the authority of the Secretary to inspect records or require establishment and maintenance of records under any other provision of this chapter, including section 364a or 364b of this title.

### **Keywords/Triggers:**

FDA records access cosmetics, MoCRA records, cosmetic safety records, FDA cosmetic inspection, Ayurvedic cosmetic records, safety substantiation records, cosmetic adulteration, 21 USC 364f